MEMORANDUM OF UNDERSTANDING & MASTER EPC WHITE-LABEL AGREEMENT

Turnkey Engineering, Mounting, Cabling & SREDA Interconnection Subcontracting
Deployment Corridor: Dhaka / Gazipur / Savar Industrial Corridor (Grade-A Enlisted)

DEVELOPER & PRINCIPAL CONTRACTOR:
ARIEL RENEWABLE ENERGY LIMITED
A Company incorporated under the Companies Act 1994
Corporate HQ: House 30, Road 07, Block C, Niketon, Gulshan-1, Dhaka-1212
Represented by: Chief Executive Officer / Authorized Signatory
Email: legal@arielmc.com | Hotline: +880 1819 273458

ENGINEERING SUBCONTRACTOR:
Apex Solar Tech Engineers Ltd
SREDA-Enlisted Tier-1 Renewable Energy EPC Partner
Operating License / Trade License: Enlisted Grade-A / SREDA Registry
Corridor Focus: Dhaka / Gazipur / Savar Industrial Corridor
Represented by: Managing Director / Technical Director
Contact: Authorized Engineering Officer

RECITALS & OPERATIONAL FRAMEWORK

WHEREAS Ariel Renewable Energy Limited ("Ariel") contracts directly with textile, apparel, leather, ceramic, and jute industrial manufacturing clients in Bangladesh for turnkey Commercial & Industrial (C&I;) rooftop solar PV installations, industrial BESS, and AI/IoT telemetry under the Ariel-SaaS™ energy architecture; and
WHEREAS the Subcontractor possesses qualified electrical and civil installation manpower, tools, safety certifications, and SREDA compliance familiarity within the Dhaka / Gazipur / Savar Industrial Corridor industrial region, and desires to undertake installation and testing works strictly on a **white-label subcontracted basis** for projects secured by Ariel;
NOW THEREFORE, in consideration of the mutual covenants herein contained, the Parties agree as follows:

1. SCOPE OF WHITE-LABEL SUBCONTRACTED SERVICES

The Subcontractor shall provide all skilled and unskilled labor, certified technicians, installation tools, rigging machinery, safety equipment, and testing instruments to execute:
(a) Civil & Structural Works: Rooftop structural load verification, placement of marine-grade AL6005-T5 aluminum railed or non-penetrating standing-seam clamp mounting, walk-path safety barriers per Accord/RSC fire guidelines.
(b) Electrical DC Works: Rigging and mounting of Tier-1 N-Type TOPCon bifacial modules, certified DC cable tray routing, MC4 crimping, IP65 string combiner boxes, and DC surge protection (Type 1+2).
(c) Electrical AC & Inverter Termination: Installation of Huawei/Sungrow string inverters, AC busbar tie-ins, LT/HT dry-type step-up transformer integration, and grounding/earthing resistance ≤ 1.0 Ohm.
(d) SREDA Net-Metering & Grid Interconnection: Pre-commissioning testing, insulation resistance tests, utility witness testing, installation of 4-quadrant bi-directional smart meter, and synchronization with BREB / BPDB / DESCO grid substations.

2. FIXED LABOR RATE CAP & FINANCIAL ARCHITECTURE

Subcontracted Component	Agreed Fixed Rate	Cost Basis & Inclusions
Turnkey Mechanical & Electrical Labor	Tk 3,200 per kWp	All inclusive: module rigging, railing, DC/AC cabling, testing, safety harness & tools
Civil Foundation / Ballast (if applicable)	At Cost + 5%	Concrete ballast casting per structural drawing approved by Ariel Lead Structural Engi
Utility Interconnection & Net Meter Inspection	Tk 45,000 / Site Lump Sum	Utility coordination, witness test scheduling, and bi-directional meter testing assistanc
SREDA Net-Metering Rate Lock Guarantee	Benchmark Tk 10.50/kWh	Plant must achieve commercial operation (COD) prior to statutory cutoff Feb 28, 2027

3. STRICT BACK-TO-BACK MILESTONE PAYMENT PROTOCOL

No Advance Capital Exposure: The Parties expressly agree that Subcontractor invoices shall be honored strictly on a **back-to-back basis**, disbursed only after Ariel receives corresponding progress milestone payments from the ultimate factory client:
• **Milestone 1 (15%):** Upon site mobilization, safety briefing, and completion of structural mounting layout.
• **Milestone 2 (35%):** Upon structural railing lock-down, PV module mounting, and DC string cable routing.
• **Milestone 3 (35%):** Upon inverter mounting, AC switchgear termination, transformer connection, and cold dry-testing.
• **Milestone 4 (15%):** Upon formal utility grid synchronization, bi-directional net-meter energization, and SREDA sign-off.

4. 100% ARIEL BRAND INTEGRITY & SITE CONDUCT

Strict White-Labeling Mandate: While present on client premises, the Subcontractor, its engineers, supervisors, and labor force are operating strictly under the banner of **Ariel Renewable Energy Limited**:

• **Branded PPE:** All personnel on site MUST wear Ariel Renewable Energy high-visibility safety vests, branded helmets, and identification badges at all times. Ariel will provide official vests and signage.

• **Zero Direct Solicitation:** Subcontractor personnel are strictly prohibited from distributing third-party business cards, wearing competitor apparel, or promoting any independent solar services to the factory owners or management.

5. STRICT NON-CIRCUMVENTION & LIQUIDATED DAMAGES (TK 50,00,000)

36-Month Strict Non-Circumvention Period: Subcontractor covenants that for a period of **thirty-six (36) months** following the introduction of any prospective or contracted client by Ariel, Subcontractor shall not, directly or indirectly (through affiliates, sister companies, or third parties), quote, solicit, advise, or contract with said client or any related industrial group for any solar, BESS, electrical, or energy infrastructure services.

Liquidated Damages Penalty: In the event of ANY breach of this non-circumvention obligation, the Subcontractor shall immediately become liable to pay to Ariel Renewable Energy Limited the liquidated sum of **BDT 50,00,000 (Fifty Lakh Bangladeshi Taka)** per violation, as a genuine pre-estimate of damages. In addition, Ariel shall be entitled to immediate ex-parte injunctive relief from the High Court Division of the Supreme Court of Bangladesh.

6. WORKMANSHIP WARRANTY, 48-HOUR SLA & GOVERNING LAW

• **Workmanship Warranty:** Subcontractor provides a **5-Year Unconditional Workmanship Warranty** on all mechanical anchors, waterproofing seals, cable terminations, and electrical earthing pits.

• **48-Hour SLA:** In the event of any system tripping, inverter alarm, or loose terminal reported by the Ariel-SaaS™ telemetry system, Subcontractor must deploy technical personnel to site within **48 hours** at zero extra cost.

• **Governing Law & Arbitration:** Governed by the Laws of the People's Republic of Bangladesh. All disputes shall be resolved by binding arbitration in Dhaka under the Bangladesh Arbitration Act, 2001.

EXECUTED FOR AND ON BEHALF OF: **ARIEL RENEWABLE ENERGY LIMITED** _____ **Authorized Signatory** Designation: Chief Executive Officer / Director Date: _____ Official Corporate Seal:	**EXECUTED FOR AND ON BEHALF OF:** **APEX SOLAR TECH ENGINEERS LTD** _____ **Authorized Signatory** Designation: Managing Director / Technical Director Date: _____ Official Corporate Seal:

Corporate HQ: House - 30 (1st Floor), Road - 07, Block - C, Niketon, Gulshan-1, Dhaka-1212, Bangladesh
☎ : +880 2410 811 91 : +880 1819 273 458 : info@arielenergybd.com www.arielenergybd.com